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U.S. Department of State Diplomacy in Action

Chad

Country Reports on Human Rights Practices
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Chad is a centralized republic dominated by a strong presidency. President Idriss Deby, leader of the Patriotic Salvation Movement (MPS), has ruled since taking power in a 1990 rebellion. The Sovereign National Conference confirmed Deby in 1993 as Chief of State, and he was elected President in mid-1996 under a Constitution adopted in a referendum earlier that year. According to widespread credible reports, fraud, vote-rigging, and local irregularities marred both the 1996 presidential election, which Deby won, and the 1997 legislative elections in which members of the MPS won 65 of 125 seats in the National Assembly. The Government remained unable to exert effective control over the northwestern region of the country where former Defense Minister Youssouf Togoimi began a rebellion in October 1998. On April 28, President Deby swore in 16 members of the Supreme Court, which began operations in July. Despite this major step in formally fulfilling the 1996 Constitution's requirement for the establishment of an independent judicial branch, the courts remained ineffective, overburdened, and subject to outside interference, including by the executive branch.

The army, gendarmerie, police, National and Nomadic Guard (GNNT), and intelligence services are responsible for internal security. Officers from president Deby's ethnic group dominate the Rapid Intervention Force (FIR), and the National Security Agency (ANS), a counterintelligence organization that has acted as an internal political police force. The security forces continued to commit serious human rights abuses.

The economy is based on subsistence agriculture, herding, and fishing. Annual per capita income is estimated at \$230. The country has little industry; its chief export is cotton. Among the impediments to economic growth are corruption, numerous state-owned monopolies, a bloated civil service, and a thriving informal sector outside government taxation policies. There are substantial unexploited oil reserves, which are the subject of ongoing negotiations with a consortium of international oil companies. The Government remains heavily dependent on assistance from external donors and international financial institutions.

The Government's human rights record remained poor, and there continued to be serious problems in many areas. The Government limited citizens' right to change the government. State security forces continue to commit extrajudicial killings, and they torture, beat, abuse, and rape persons. Prison conditions remain harsh and life threatening. Security forces continued to use arbitrary arrest and detention. Although the Government detains and imprisons members of the security forces implicated or accused of criminal acts, it rarely prosecutes or sanctions members of the security forces who committed human rights abuses. The Government also did not prosecute or punish security force personnel accused in previous years of killings, rape, torture, and arbitrary arrest and detention. The Government released jailed opposition Deputy

Ngarlejo Yorongar, opposition party leader Yaya Batit and over 200 other prisoners in February; however, it still held political detainees, and lengthy pretrial detention remained a problem. The judiciary remained subject to executive interference and was unable to provide citizens with prompt trials. Security forces used illegal searches and wiretaps and monitored the contents of private mail. The Government at times restricted freedom of speech and of the press. It threatened the private press with judicial action if independent newspapers continued to publish interviews and statements by rebel leader Youssouf Togoimi. The Government at times limited freedom of assembly, religion, and movement and interfered with the operations of human rights groups. Societal discrimination against women remained common. Violence against women also is believed to be common, and female genital mutilation (FGM) remained widespread. Both official and societal ethnic and regional discrimination remained widespread; northerners, and in particular members of President Deby's Zaghawa ethnic minority, continued to dominate key positions in the public sector. There also were instances of forced labor, including forced child labor. Child labor is a problem. Serious armed conflict between the Government and rebels in the Tibesti continued.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

Officially sanctioned extrajudicial killings of suspected criminals by police, customs officers, and gendarmes continued, although some members of the security forces were taken into custody pending further judicial action. Units of the armed forces were responsible for the extrajudicial killings of suspected members of the northwestern rebellion in the Tibesti.

In January security forces in collaboration with local administrative officials were responsible for killing seven presumed thieves in the Mayo Kebbi and Bongor areas. Also in January, two businessmen suspected of murder in Tan'djile died while in police custody. In February customs officials in Bol beat to death three men, which touched off a local sit-in. In March a local human rights group in the Logone Oriental discovered a common grave containing three unidentified corpses of persons who allegedly died at the hands of security forces from Moundou.

Throughout the year, members of the Tibesti rebellion reported human rights abuses and the killing of suspected collaborators among the civilian population by members of the army. During March a human rights group verified four deaths in Zouar that were attributed to the army. In July Hemchi Dogori, a gendarme implicated in civilian massacres in the two Logones in 1993, opened fire on a group of villagers in Gourma near Faya Largeau. Nine persons were wounded, including two pregnant women, and one 81-year-old man was killed.

b. Disappearances

There were no reports of politically motivated disappearances during the year. However, there remain numerous cases of disappearances from previous years that have never been resolved. For example, in February 1998, security forces arrested Kibel Justin in Sarh for suspicion of aiding rebel leader Dr. Nahor Ngawara Mamouth. Although most detainees held for complicity in Dr. Nahor's 1998 kidnapping of four Frenchmen were released in July 1998, Kibel Justin cannot be accounted for or located in other prisons.

c. Torture, and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Constitution specifically prohibits torture and degrading or humiliating treatment; however, members of the security forces tortured, beat, abused, and raped citizens. No one was prosecuted for these abuses.

In January two members of the Ati gendarmerie broke the right arm of a high school student. In February members of the N'djamena gendarmerie arrested a member of the National Sugar Society and severely beat him for allegedly embezzling funds.

Dr. Djibrine Ibrahim spent much of the period from February 1998 to June in detention on suspicion of aiding rebel leaders Dr. Nahor Ngawara Mamouth and Youssouf Togoimi. During his months of incarceration, military officers as well as ANS agents subjected Dr. Ibrahim to various forms of torture, including "arbatachar" (where the victim's arms and legs are tied behind his or her back cutting off circulation and sometimes resulting in paralysis), as well as severe beatings. Due to double fractures of his right hip, Dr. Ibrahim's right leg remains crippled, requiring him to use a cane in order to walk. Both his legs are heavily scarred as a result of numerous beatings and the application of irritants to open wounds on both legs. Despite lengthy periods of incarceration, the Government never permitted Dr. Ibrahim legal counsel or brought him before a judge on formal charges.

Police injured two students when they dispersed demonstrations in February (see Section 2.b.).

Security forces extorted money at roadblocks (see Section 2.d.).

In September members of the police and military forces tortured a businesswoman at the behest of a presidential advisor who was in debt to the victim. Due to the publicity surrounding the case, President Deby dismissed the Minister of Justice, the presidential advisor, as well as the Director General of the Gendarmerie.

Two specialized police units under the Ministry of Interior's authority committed numerous human rights abuses during the year. Members of the Police Rapid Action Company (CARP) and the Special Weapons and Tactics (SWAT) Unit (RAID) tortured, beat, and raped detainees, without sanction by government authorities. Impunity for those who commit human rights abuses remains widespread.

Prison conditions were harsh and life threatening. Prisons were characterized by serious overcrowding; poor sanitation; inadequate food, shelter, and medical facilities; and the mixing of adult male and minor prisoners. Female prisoners usually are separated from males. The law provides that a doctor must visit each prison three times a week; however, there were credible reports that this was not done.

Human rights organizations in June called on the Government to investigate numerous accusations by citizens in the Kenga canton of the Guera prefecture who claimed that the canton chief was operating a private prison in which some prisoners were tortured and whipped.

The Government permitted the ICRC to visit all prisons, including military prisons, although it insisted on advance notice; the ICRC conducted 37 prison visits during the year. Domestic nongovernmental organizations (NGO's), including human rights groups, may visit a prison only with authorization from a court or from the Director of Prisons. These groups reportedly were not allowed access to military prisons, and their access to civilian prisons depended greatly on the personal inclinations of judges and prison administrators.

d. Arbitrary Arrest, Detention, or Exile

The Constitution and the Penal Code prohibit arbitrary arrest; however, security forces continued to use arbitrary arrest and detention. Arrest warrants must be signed by a judicial official; however, the Government often does not respect these requirements.

Human rights organizations cite the cases of over 100 detainees held during the period from 1996 to 1999 by the canton chief in Kenga, Guera, who is accused of operating a private prison. In view of the lack of adequate judicial coverage in the country, the Government accords traditional chiefs some judicial authority in the area of arrest and short-term detention until prisoners can be turned over to judicial officials. However, the Kenga canton chief abused his authority in numerous cases.

In the first 3 months of the year, the army arrested three persons in Faya Largeau on suspicion of aiding Tibesti rebel leader Togoimi. On March 18, the director general of the gendarmerie of Faya Largeau, acting under the orders of the Minister of Defense, arrested the imam of the Faya Largeau mosque. The Government also detained imams Sheskh Mahamat Marouf

and Sheik Kaki Suzuki (see Section 2.c.).

Members of CARP and RAID were responsible for numerous cases of arbitrary arrest and detention, and tortured, beat, and raped detainees (see Section 1.c.). Persons accused of crimes may endure up to several years of incarceration before being charged or tried, especially those arrested for felonies in the provinces, who must await remand to the overcrowded house of detention in N'djamena.

The Government released jailed opposition Deputy Ngarlejj Yorongar, opposition party leader Yaya Batit, and over 200 other prisoners in February. However, the Government continued to hold political detainees. Detainees implicated in Dr. Nahor's rebellion remain in jail without charges and without trial. Despite the arrests of individuals on suspicion of subversive activities against the Government, no one has been tried for such crimes since Deby came to power. Political detainees either eventually are released or they disappear. The army returned from the Democratic Republic of Congo in June with a group of Congolese prisoners of war, many of whom were ordinary civilians. Although the Government claimed that they were Ugandan and Rwandan soldiers, the group consisted entirely of Congolese nationals who remain housed at a military facility in N'djamena.

The Government did not practice forced exile; however, some family members of persons who joined the northern rebellion chose to leave the country for security reasons.

e. Denial of Fair Public Trial

The Constitution mandates an independent judiciary; however, the judiciary was ineffective, underfunded, overburdened, and subject to executive interference. In practice officials and other influential persons often enjoyed immunity from judicial sanction. Executive influence remains a serious problem in the judiciary. For example, in the case of the 11-month imprisonment of an imam in Abeche (see Section 2.c.), President Deby supported the prolonged incarceration of the imam despite the lack of a judicial review of the case (also see Section 1.d.). During the year, the President intervened in a number of legal cases for political reasons.

On April 28, President Deby swore in 16 members of the Supreme Court as well as 9 members of the Constitutional Court. Establishment of the two courts fulfilled the Constitution's formal requirement for an independent judicial branch. Due to funding restrictions, both courts did not begin operations until mid-year and still are relatively untested legal bodies. The national judicial system operates with courts located in provincial capitals. The N'djamena court of appeals is supposed to conduct regular sessions in the provinces, but funding limitations do not permit the court to make periodic circuit visits.

Applicable law can be confusing, as courts often tend to blend the formal French-derived legal code with traditional practices. Residents of rural areas often lack effective access to formal judicial institutions. In most civil cases, they rely on traditional courts presided over by village chiefs, canton chiefs, or sultans. Decisions may be appealed to a formal court.

Official inaction and executive interference continue to plague the judiciary. Long delays in trials result in lengthy pretrial detention (see Section 1.d.).

Justice officials' salaries are often low. Although the Government has stated that the strengthening and reform of the judiciary are top priorities, it made little progress in these areas.

The Government has not enforced the Military Code of Justice since the 1979-80 civil war, and court martials instituted early in the Deby regime to try security personnel for crimes against civilians no longer operate.

In February the President pardoned opposition deputy Ngarlejj Yorongar and opposition political party leader Yaya Batit, along with approximately 200 other prisoners. Both men had been accused of defamation in 1998. The Government denied Batit a public trial and did not provide him legal counsel. Yorongar's trial and subsequent appeals were characterized by irregularities and questionable judicial proceedings.

There were no reliable figures concerning the number of political prisoners. A prominent political prisoner, Dr. Djibrine Ibrahim, was released in June. Political prisoners rarely are convicted of any crime and are either released or disappear.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The Constitution provides for the right to privacy of home, correspondence, and other communications, as well as freedom from arbitrary search; however, authorities infringed on those rights. The Penal Code requires authorities to conduct searches of homes only during daylight hours and with a legal warrant; however, in practice security forces ignored these provisions and conducted extrajudicial searches at any time.

The Government engages in wiretapping without judicial authority and monitors the contents of private mail through the postal service.

The Government illegally conscripted young men from eastern Chad and Sudan into the army where they were trained for fighting against rebel forces in northern Chad.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and of the press; however, the Government at times restricted this right in practice. The Government threatened journalists with legal retaliation for publication of antigovernment articles. The Government's primary concern centered on a series of interviews with rebel leader Youssouf Togoimi, which the Minister of Communications labeled as seditious. Intelligence services personnel visited the offices of one journalist and threatened her if she continued to publish articles about the rebellion. However, unlike the previous year, the Government did not prosecute private print journalists for libel.

NGO's published their findings on human rights cases in the print media, often sending statements to diplomatic missions and international human rights NGO's.

A number of private newspapers are published in the capital; some are vociferously critical of government policies and leaders.

Due to widespread illiteracy and the relatively high cost of newspapers and television, radio is the most important medium of mass communication and information. Until 1999 there was only one privately owned domestic radio station, La Voix du Paysan, which is owned by the Catholic Church and began operating in 1997. Located in Doba, it broadcasts locally produced programming including news coverage and political commentary in French and indigenous languages over a 140 mile range. The High Council on Communications (HCC) has set the licensing fee for a commercial radio station at a prohibitively high level: about \$9,000 (5 million cfa francs) per year, 10 times the fee for radio stations owned by nonprofit NGO's, like La Voix du Paysan.

A new community radio station in N'djamena, DJA-FM99, received a license from the HCC but has only begun broadcasting music. Station SM-Liberté, owned by a group of human rights organizations, also received a license but has not started broadcasting.

The State owns and operates the only domestic television broadcasting station. There have been no requests to establish a private television station, economic preconditions for which may not exist. There is one privately owned cable television service that distributes foreign-sourced programming in French and Arabic, but relatively few citizens can afford to subscribe. A South African cable station also sells subscriptions.

The sole Internet access server is provided by the government-owned telecommunications monopoly. The Government does not restrict access to the Internet; however, the state-owned firm reportedly sets prices and provides a quality of service that may discourage the establishment of private domestic Internet service providers.

The official media, consisting of a national radio network, a press agency, and N'djamena's only national television station, are subject to both official and informal censorship. However, at times they are critical of the Government. The official media also give top priority to government officials and events, while providing less attention to the opposition. The HCC acts as an arbiter whose main function is to promote free access to the media, but it has no powers of enforcement.

Academic freedom is respected. In February students held a 3-day protest over an increase in tuition fees (see Section 2.b.).

b. Freedom of Peaceful Assembly and Association

The Constitution provides for freedom of assembly; however, the Government at times limited this right in practice. The law requires organizers of public demonstrations to notify local authorities 5 days in advance. Authorities banned demonstrations critical of the Government despite being notified in advance as required by law. The Government did not permit students at N'djamena University to protest the accidental killing of two university professors by customs authorities during a high-speed pursuit of smugglers. Despite the lack of formal government concurrence, a 3-day student protest over the increase in tuition fees erupted in February. Subsequent police action in dispersing the students resulted in injuries to two students.

By contrast peaceful demonstrations in support of the Government and its policies are condoned. In October the Government permitted demonstrations in support of the oil project.

The Constitution provides for freedom of association, and the Government respected this right in practice.

c. Freedom of Religion

The Constitution provides for religious freedom, and the Government generally respects this right in practice; however, at times it limited this right. The Constitution also provides that the country shall be a secular state. However, despite the secular nature of the State, a large proportion of senior government officials, including President Deby, are Muslims, and some policies favor Islam in practice. For example the Government sponsors annual Hajj trips to Mecca for certain government officials.

Non-Islamic religious leaders claim that Islamic officials and organizations receive greater tax exemptions and unofficial financial support from the Government. State lands reportedly are accorded to Islamic leaders for the purpose of building mosques, while other religious denominations must purchase land at market rates to build churches.

The Government requires religious groups, including both foreign missionary groups and Chadian religious groups, to register with the Ministry of the Interior's Department for Religious Affairs. Registration confers official recognition but not any tax preferences or other benefits. There are no specific legal penalties for failure to register, and there were no reports that any group had failed to apply for registration or that the registration process is unduly burdensome. The Government reportedly has denied official recognition to some groups of Arab Muslims in Ati, near the eastern border with Sudan, on the grounds that they have incorporated elements of traditional African religion, such as dancing and singing, into their worship. In addition to registration, foreign missionaries must receive authorization from the Ministry of Interior, but do not face restrictions.

Instances of government intervention and prohibition of religious practices during the reporting period involved both Christians and Muslims. The Christian Eglise Evangelique des Frères (EEF), which consists of approximately 40,000 adherents located primarily in Bessao in the South, underwent a split in 1998 into moderate and fundamentalist factions. Due to tensions between the two groups as well as the fact that the moderate faction controlled the church organization recognized by the Government (and resulting in registration for all EEF churches), the Government banned the fundamentalist

group from its churches and further forbade adherents from meeting in their homes for prayers. Although tension remains between the two factions, the Ministry of the Interior rescinded its ban on the fundamentalist faction and issued it a legal registration on April 7 to practice under a new name (Eglise des Frères Indépendantes au Tchad--EFIT).

Within the Islamic community, the Government intervened to imprison and sanction fundamentalist Islamic imams believed to be promoting conflict among Muslims. In January the Government arbitrarily arrested and detained imam Sheikh Mahamat Marouf, the fundamentalist Islamic leader of the northeastern town of Abeche and refused to allow his followers to meet and pray openly in their mosque. Sheikh Marouf remained in jail without formal charges until November 19 when the President ordered his release. The Government prohibited a fundamentalist imam in N'Djamena, Sheikh Faki Suzuki (named after the Suzuki car equipped with loudspeakers that he used for broadcasting his sermons around town) from preaching Islam for 6 months, from October 1998 to March. The Government claimed that his messages promoted violence, and it also placed him under house arrest.

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The Constitution provides for these rights; however, there were some limits on them in practice. The Government did not require special permission for travel in areas that it effectively controls. However, elements of the security forces, rebels, and bandits continued to maintain many roadblocks throughout the country, extorting money from travelers. The Government did not officially condone such behavior on the part of security forces members, but did not discourage it effectively. In addition armed bandits operated on many roads, assaulting, robbing, and killing travelers; some bandits were identified as active duty soldiers or deserters.

The Government cooperates with the U.N. High Commissioner for Refugees (UNHCR) and other humanitarian organizations assisting refugees. There were no confirmed reports of the forced expulsion of persons with a valid claim to refugee status, but refugees continue to complain about threats to their safety while waiting for their cases to be adjudicated. The country provides first asylum for refugees and has done so in past years. The Government has granted refugee and asylee status informally to persons and has allowed them to remain for resettlement.

In January 5,000 additional Sudanese refugees fleeing tribal violence in the western Sudan joined 12,500 Sudanese refugees who entered Chad in 1998. All remain scattered in more than 30 villages along the eastern border near Adre. Despite entreaties from the Government of Sudan to return, the Sudanese refugees continue to reside in Chad.

The Government adheres to the principles of U.N. refugee standards and criteria; however, these principles are not incorporated into the law. An official national structure is in place to deal with Chadian and foreign refugee affairs, called the National Committee for Welcoming and Reinsertion. Since 1993 the Government has registered refugees in N'djamena and sent their applications for refugee status to UNHCR Central African headquarters in Kinshasa, the Democratic Republic of Congo, or other regional UNHCR offices in Africa. A person whose application is accepted is eligible to enroll in a 6-month care maintenance program that includes a monthly subsistence allowance, medical care, and assistance in finding work. This program is funded by a local NGO.

Chadian refugees are legally free to repatriate, and the UNHCR intends to repatriate approximately 25,000 Chadians from surrounding countries in the next 3 years. Most Chadian refugees reside in the Central African Republic, Niger, Libya, Sudan, Nigeria, and Cameroon.

A group of foreign individuals, mostly Sudanese, claiming to be refugees, continue to charge that foreign officials often monitor refugees applying at the UNHCR branch office N'djamena and have stated that this intimidates some refugees.

There were no known instances of persons being returned to a country where they feared persecution. However, the Sudanese government forcibly repatriated several Chadian rebels in September, even though the Government of Chad characterized their return as a reconciliation. Although the men are no longer in prison, their movements are restricted and they are unable to leave the country.

Section 3 Respect for Political Rights: The Right of Citizens to Change their Government

Citizens' right to change their government peacefully remained limited. The 1996 presidential election, which Deby won, and the 1997 National Assembly elections, in which Deby's MPS party won 65 of a total of 125 seats, were the first multiparty elections in many years. However, both elections were compromised by widely reported fraud, including vote rigging and other irregularities committed by election officers, government officials, members of the ruling party, and other parties.

The Government is headed by a prime minister who is nominated by the President and confirmed by the National Assembly. Prime Minister Nassour Ouaidou Guelengdouksia has held office since May 1997.

The State remains highly centralized. The national government appoints all subnational government officials, who also must rely on the central government for most of their revenues and their administrative personnel. Using its parliamentary majority, the Government during the year passed twin legislative bills outlining the a proposed decentralization structure leading to local government elections that are required by the Constitution. Local elections have been delayed since the conclusion of the 1997 parliamentary elections. The newly established Constitutional Court in September returned both legislative bills to parliament after finding that they violated the Constitution.

Many political parties objected to the Government's proposed decentralization plan and its presidentially decreed internal territorial divisions. Political leaders accuse the Government of coopting their most popular local politicians to run as candidates in local elections and also alleged intimidation and threats by the military forces against those party members who refused.

Women are underrepresented in Government and politics; few women hold senior leadership positions. There are 2 women of cabinet rank and 3 female members of the 125-seat National Assembly.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

Human rights organizations generally operate with few overt restrictions, investigating and publishing their findings on human rights cases. Government officials are often accessible to human rights monitors but generally are unresponsive or hostile to their findings. The Government obstructed the work of human rights organizations during the year through arrest, detention, and intimidation. Incidents between state security forces and human rights monitors occurred in the Kanem, Moyen Chari, Mayo Kebbi, Tan'djile, and Ouaddai regions.

NGO's have gained recognition under the Deby regime and play a role in political events. Human rights groups have assisted the Government in meditation efforts to reconcile the ancient conflict between herders and farmers over land and water rights. Numerous NGO's participated in a national conference on the farmer/herder conflict sponsored by the Government in May.

Human rights groups are outspoken, if often partisan, in publicizing abuses through reports and press releases, but only occasionally are they able to intervene successfully with authorities. Many human rights groups are composed of opponents of the Government, which impairs their credibility with both the Government and international organizations.

In January the European Interparliamentary Union issued a report on the arrest, detention, and legal proceedings against then-imprisoned opposition deputy Ngarlejj Yorongar. The delegation that visited Chad on a fact-finding mission in late 1998 raised serious objections to Yorongar's treatment in prison, the political nature of his arrest, and the lack of impartial judicial treatment in his case.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The Constitution provides for equal rights for all citizens, regardless of origin, race, religion, political opinion, or social status. In practice cultural traditions maintain women in a status subordinate to men, and the Government favors its ethnic supporters and allies.

Women

While no statistics are available, domestic violence against women is believed to be common. By tradition wives are subject to the authority of their husbands, and they have only limited legal recourse against abuse. Family or traditional authorities may act in such cases, but police rarely intervene.

Discrimination against women remains widespread. In practice women do not have equal opportunities for education and training, making it difficult for them to compete for the few formal sector jobs. Property and inheritance laws do not discriminate against women, but traditional practice favors men. Exploitation of women is especially pervasive in rural areas where women do most of the agricultural labor and are discouraged from formal schooling.

In August the Government held meetings with representatives of religious groups and civil society to update the Family Code. In the absence of a comprehensive law governing women's rights, the Family Code sets the parameters of women's rights under the law.

The Government promoted increased awareness of women's rights in March by sponsoring a National Women's Congress in Moundou in honor of international women's day. Although the meetings did not result in formal resolutions or a groundbreaking political action plan, the meetings nevertheless served to focus attention on many of the problems that confront women.

Children

The Government has demonstrated little commitment to children's rights and welfare. Although increasing its assistance to the education sector, the Government has not committed adequate funding to public education and medical care. Educational opportunities for girls are limited, mainly because of tradition. About as many girls as boys are enrolled in primary school, but the percentage of girls enrolled in secondary school is extremely low, primarily because of early marriage. Although the law prohibits sexual relations with a girl under the age of 14, even if married, this law rarely is enforced, and families arrange marriages for girls as young as the age of 11 or 12, sometimes forcibly, for the financial gain of a dowry. Many wives then are obligated to work long hours of physical labor for their husbands in fields or homes. Children work in agriculture and herding (see Section 6.d.).

Female genital mutilation (FGM), which is widely condemned by international health experts as damaging to both physical and psychological health, is widespread--estimated to have been practiced on about 60 percent of all females--and deeply rooted in tradition. Advocated by women as well as by men, the practice is especially prevalent among ethnic groups in the east and south, where it was introduced from Sudan. All three types of FGM are practiced. The least common but most invasive procedure, infibulation, is confined largely to the region on the eastern border with Sudan. FGM usually is performed prior to puberty as a rite of passage, an occasion that many families use to profit from gifts from their communities.

Opposition to the elimination of FGM is strong. Both the Government and the NGO community in recent years have conducted active and sustained public education campaigns against the practice. A 1995 law makes FGM theoretically a prosecutable offense as a form of assault, and charges can be brought against the parents of FGM victims, medical practitioners, or others involved in the action; however, no suits have been brought under the law.

People with Disabilities

There is no official discrimination against disabled persons. However, the Government operates only a few therapy, education, or employment programs for persons with disabilities, and no laws mandate access to buildings for the disabled. Several local NGO's provide skills training to the deaf and blind.

Religious Minorities

About half the population is Muslim, about one-third is Christian, and the remainder practice traditional indigenous religions or no religion. Most northerners practice Islam; most southerners practice Christianity or a traditional religion. Consequently, tensions and conflicts between government supporters from the politically dominant northern region and rebels from the politically subordinate southern region occasionally have religious overtones.

National/Racial/Ethnic Minorities

The country's population of about 7 million consists of approximately 200 ethnic groups, many of which are concentrated regionally and speak distinct primary languages. Most ethnic groups are affiliated with one of two regional and cultural traditions: Arab and Saharan/Sahelian zone Muslims in the north, center, and east; and Sudanian zone Christian or animist groups in the south.

Societal discrimination continued to be practiced routinely by members of virtually all ethnic groups and was evident in patterns of buying and employment, in patterns of de facto segregation in urban neighborhoods, and in the paucity of interethnic marriages, especially across the north-south divide. Although the law prohibits state discrimination on the basis of ethnicity, in practice ethnicity continued to influence government appointments and political alliances. Northerners, in particular members of President Deby's Zaghawa ethnic group, continued to dominate the public sector and were overrepresented in key institutions of state power, including the military officer corps, elite military units, and the presidential staff. Political parties and groups generally continued to have readily identifiable regional or ethnic bases.

In the army's fight against the Tibesti rebels, several hundred soldiers were killed or injured by land mines. The Government exhibited a pattern of discrimination in selectively separating wounded northerners from southerners for treatment, with the northerners given preferential medical treatment, including evacuation abroad. Many untreated wounded southerners were left to die as a result of the selective access to medical treatment based solely on ethnicity.

Section 6 Worker Rights

a. The Right of Association

The Constitution recognizes freedom of association and union membership, as well as the right to strike, and the Government generally respected the right to organize and strike in practice. All employees, except members of the armed forces, are free to join or form unions. Unions no longer need authorization from the Government in order to operate legally. However, few workers belong to unions, as most workers are unpaid subsistence cultivators or herders. The main labor organization is the Federation of Chadian Unions (UST). Its former major constituent union, the Teacher's Union of Chad, broke off from UST and became independent in 1998. Neither union has ties to the Government. A number of minor federations and unions, including the Free Confederation of Chadian Workers, also operate, some with ties to government officials.

The telecommunications workers struck in July over issues relating to the pending privatization of the telecommunications sector.

Labor unions have the right to affiliate internationally.

b. The Right to Organize and Bargain Collectively

The Constitution contains only general provisions for the rights of the Government to set minimum wage standards and to permit unions to bargain collectively. The Labor Code has specific provisions on collective bargaining and workers' rights. The Labor Code empowers the Government to intervene in the bargaining process under certain circumstances.

The Labor Code protects unions against antiunion discrimination, but there is no formal mechanism for resolving such complaints.

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The Constitution and the Labor Code prohibit slavery and forced or compulsory labor by adults and children; however, while there are no reports of forced labor practices in the formal economy, there were isolated instances of forced labor by adults and children in the rural sector by local authorities as well as in military installations in the north.

d. Status of Child Labor Practices and Minimum Age for Employment

The Labor Code stipulates that the minimum age for employment in the formal sector is 14 years. The Government does not enforce the law, but in practice children rarely are employed except in agriculture and herding due to the high unemployment rate; however, in agriculture and herding, child labor is nearly universal. Children rarely are employed in the commercial sector; however, some children work on contract with herders. The Government does not support the use of minors in the military services, and minors were believed to have been mustered out in the demobilization program of 1997. However, there were credible reports that minors continue to serve in the military services. The Government prohibits forced and bonded labor by children; however, it does not enforce this prohibition effectively (see Section 6.c.).

e. Acceptable Conditions of Work

The Labor Code requires the Government to set minimum wages. The minimum wage at year's end was \$50 (25,480 cfa) per month. Most wages, including the minimum wage, were insufficient to provide a decent standard of living for a worker and family. Nearly all private sector and state-owned firms paid at least the minimum wage, but the lowest public sector wages remained below the minimum wage. The Government increased the salaries of civil servants by 5 percent in January because it was unable to pay many government employees the minimum wage during 1998. The Government reduced wages paid to the armed forces, which are already well below the minimum wage.

The State, which owns businesses that dominate many sectors of the formal economy, remained the largest employer. The Government reduced significantly the large salary arrears owed to civil servants and military personnel, although some arrears remain. Nevertheless, wages remained low, and many state employees continued to hold second jobs, raise their own food crops, or rely on their families for support.

The law limits most agricultural work to 39 hours per week, with overtime paid for supplementary hours. Agricultural work is limited to 2,400 hours per year. All workers are entitled to 48 hours of rest per week, although in practice these laws rarely are enforced.

The Labor Code mandates occupational health and safety standards and inspectors with the authority to enforce them. These standards rarely are respected in practice in the private sector and are nonexistent in the civil service. The UST has alleged before the International Labor Organization that the labor inspection service is not allocated the resources necessary to perform its duties. In principle workers can remove themselves from dangerous working conditions, but in practice they cannot leave without jeopardizing their employment.

f. Trafficking

The law prohibits trafficking in persons, and there were no reports that persons were trafficked in, to, or from the country.

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